

PCU331315 Ramirez, Laura H vs. FIRE INSURANCE EXCHANGE

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-07-07

Motion: Defendant's Motion to Deem Admissions Admitted; Sanctions

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Re: Ramirez, Laura H vs. FIRE INSURANCE EXCHANGE

Case No.: PCU331315

Date: July 7, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Defendant's Motion to Deem Admissions Admitted; Sanctions

Tentative Ruling: To grant the motion and deem Nos. 1 through 20 admitted; to order sanctions against Plaintiff and counsel of record, jointly and severally, in the amount of \$207.50 due no later than thirty (30) days from notice of this ruling; Defendant shall give notice.

Facts

In this breach of insurance contract and tortious bad faith action, Defendant served Plaintiff, via counsel, with Requests for Admissions, Set One, via mail on March 24, 2026.

The deadline to respond is indicated as May 15, 2026.

As of the date of the filing of this motion, no response has been received by Defendant.

Defendant now seeks to deem Admissions Nos. 1 through 20 admitted and for sanctions in the amount 1,358.00.

Authority and Analysis

Code of Civil Procedure section 2033.280 states that if a party to whom requests for admissions have been directed fails to serve a timely response, the propounding party may move for an order that the truth of any facts specified in the requests for

admissions be deemed admitted. Here, Plaintiff has failed to serve a timely response and Defendant has moved for an order to deem the admissions admitted.

Based on the foregoing, the Court grants Defendant's motion. The facts and allegations alleged in Requests for Admissions Nos. 1 through 20 of Defendant's First Set of Requests for Admission shall be deemed admitted.

As to sanctions, the Court notes 4.4 hours incurred, with additional time anticipated, as to the filing of this motion at a rate of \$295 per hour, plus a \$60 filing fee.

Under Code of Civil Procedure sections 2033.280(c) the Court imposes sanctions in the total amount \$207.50, consisting of one half hour for this motion at the stated rate of \$295, plus the \$60 filing fee. The Court notes there is no meet and confer requirement and all that is necessary to obtain the relief requested on this motion to deem admissions admitted is that the other party failed to respond within the designated time.

Sanctions in that amount are imposed against Plaintiff and counsel of record, jointly and severally, and are due no later than thirty (30) days from notice of this ruling. Defendant shall give notice

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.